

HOUSE JOINT RESOLUTION 726

By Warner

A RESOLUTION supporting reconstruction of the Columbia Dam.

WHEREAS, in 1969, the Tennessee Valley Authority (TVA) started planning and eventually constructed to 90% completion the Columbia Dam located on the Duck River just east of Columbia, Tennessee; and

WHEREAS, nearing the completion of the Columbia Dam, environmental groups brought a case in federal court against the TVA in an attempt to halt dam construction; and

WHEREAS, in 1981, the Sixth Circuit Court of Appeals ruled against the TVA Columbia Dam project which eventually led to a halt of construction of the dam (*Pacific Legal Foundation v. Andrus*, 657 F.2d 829); and

WHEREAS, after spending approximately \$83 million for the initial construction, the dam was demolished between 1999 and 2000, costing another \$2.4 million; and

WHEREAS, the original Columbia Dam was built after the TVA Normandy Dam was completed on the Duck River in order to work in tandem with each other to provide flood control, generation, and navigation, which are TVA's congressional obligations; and

WHEREAS, with the dismantling of the Columbia Dam, the concept of the two dams working together in tandem was lost, presumably forever, and with no control, the area experiences the loss of farmland and flooding after heavy rains; and

WHEREAS, with the unexpected rapid growth of industry and residential housing in the Middle Tennessee area, the Duck River levels run very low during our hot summers and potentially cannot supply adequate water for current and future generations; and

WHEREAS, the Normandy Reservoir no longer has the capacity to release enough water to properly dilute gray water discharged into the Duck River; and

WHEREAS, the reconstruction of the Columbia Dam aligns with southern middle Tennessee's long-term strategic goals for water resource management, economic development, environmental stewardship, and recreational use; and

WHEREAS, with the population growth in all of Middle Tennessee, water resources are becoming a real concern; and

WHEREAS, this State recognizes the need to comply with all applicable federal, state, and local laws and regulations governing dam reconstruction, including the National Environmental Policy Act (42 U.S.C. § 4321, et seq.), the Clean Water Act (33 U.S.C. § 1251, et seq.), and the Safe Dams Act of 1973 (Tennessee Code Annotated, Title 69, Chapter 11); now, therefore,

BE IT RESOLVED BY THE HOUSE OF REPRESENTATIVES OF THE ONE HUNDRED FOURTEENTH GENERAL ASSEMBLY OF THE STATE OF TENNESSEE, THE SENATE CONCURRING, that the State of Tennessee expresses its strong support for the reconstruction of the Columbia Dam Project and recognizes it as a critical priority for the State to establish an adequate water supply system for sustained growth, economic development, and recreational use.

BE IT FURTHER RESOLVED, that an appropriate copy of this resolution be prepared for presentation with this final clause omitted from such copy and upon proper request made to the appropriate clerk, the language appearing immediately following the State seal appear without House or Senate designation.